

Smt Supriya L vs Sri Ravi V on 11 September, 2023

Author: S.G.Pandit

Bench: S.G.Pandit

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NC: 2023:KHC:32634
CP No. 107 of 2022

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 11TH DAY OF SEPTEMBER, 2023

BEFORE

THE HON'BLE MR JUSTICE S.G.PANDIT

CIVIL PETITION NO. 107 OF 2022

BETWEEN:

SMT. SUPRIYA L
W/O SRI RAVI V
D/O SRI LINGESHWAR
AGED ABOUT 32 YEARS
R/AT NO.54 OFFICIAL COLONY
T B DAM, HOSPET TALUK
BELLARY DISTRICT- 583 225.

...PETITIONER

(BY SRI. V R BALARAJ, ADV.)

AND:

SRI RAVI V
S/O LATE SRI VASU
AGED ABOUT 35 YEARS
R/AT NO.32, S H 5TH MAIN
4TH CROSS, VIDYARANYAPURAM
MYSURU -570 008.

...RESPONDENT

Digitally
signed by A K
CHANDRIKA

Location:
HIGH COURT

OF
KARNATAKA

(BY Ms. LEELA, ADV. FOR
SRI. PREMNATH N T, ADV.)

THIS PETITION IS FILED UNDER SECTION 24 OF CPC,
PRAYING TO A) TRANSFERRING THE M.C.PETITION IN NO.842/2021
FROM THE III ADDITIONAL PRINCIPAL JUDGE, FAMILY COURT,
MYSURU TO THE COURT OF LEARNED PRINCIPAL SENIOR CIVIL
JUDGE, HOSPET, BELLARY DISTRICT FOR DISPOSAL AND B) PASS
SUCH OTHER APPROPRIATE ORDER/S AS DEEMED FIT TO PASS
UNDER THE FACTS AND CIRCUMSTANCES OF THE CASE WITH
COSTS, IN THE INTEREST OF JUSTICE AND EQUITY.

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NC: 2023:KHC:32634

CP No. 107 of 2022

THIS PETITION, COMING ON FOR ADMISSION, THROUGH
VIDEO CONFERENCE THIS DAY, THE COURT MADE THE FOLLOWING:

ORDER

The petitioner, wife of respondent/husband is before this Court under Section 24 of CPC praying to transfer M.C.No.842/2021 pending on the file of the III Additional Principal Judge, Family Court, Mysuru to the Court of Principal Senior Civil Judge, Hospet, Bellary District.

2. Heard the learned counsel Sri.V.R.Balaraj for petitioner/wife and learned counsel Ms.Leela, for Sri.Premnath.N.T., learned counsel for the respondent/husband through video conference. Perused the Civil Petition papers.

3. Learned counsel for the petitioner/wife would submit that marriage of the petitioner and respondent was solemnized on 30.01.2018. Due to the differences between petitioner and respondent, petitioner/wife is staying with her parents at Hospet. The respondent/husband instituted M.C.No.842/2021 under Section 13(1)(ia) and (ib) of the NC: 2023:KHC:32634 Hindu Marriage Act, 1955 on the file of the Principal Judge, Family Court at Mysuru seeking dissolution of marriage. Learned counsel for the petitioner/wife would submit that there is no issues from the marriage. The petitioner/wife is not working and she has no income of her own. The petitioner/wife is residing with her parents at Hospet and depending on her parents for her livelihood. It is also submitted that it would be difficult for petitioner/wife to travel from Hospet to Mysuru to attend the proceedings in M.C.No.842/2021. Therefore, it is prayed for transfer of petition from Mysuru to Hospet.

4. Per contra, learned counsel for the respondent/husband would submit that petitioner/wife without there being any reason, left the matrimonial home and not made any efforts to come back to matrimonial home. It is submitted that respondent/husband is working at a Mechanical Shop at Mysuru. Further, it is submitted that respondent/husband has to look after his aged parents and it would be difficult for respondent/husband to NC: 2023:KHC:32634 travel from Mysuru to Hospet and it would cause great hardship, if the proceedings is transferred to Hospet. Thus, it is prayed for dismissal of the petition.

5. In a petition filed under Section 24 of CPC for transfer, more particularly, in matrimonial cases, the Court shall have to take note of the inconvenience or hardship that would be caused to the wife and also social and financial status of the parties.

6. In the case on hand, it is stated that petitioner/wife is not working and she has no income of her own. The petitioner/wife is said to be depending on her parents for her livelihood. The reason that respondent/husband is working at Mechanical Shop and he has to look after his aged parents cannot be a reason to deny the relief sought for in the petition. Equally, it is the responsibility of respondent/husband to look after his wife. If the proceedings is not transferred from Mysuru to Hospet, the petitioner would suffer more hardship and inconvenience. Hence, the following:

NC: 2023:KHC:32634 ORDER

1) Civil Petition filed under Section 24 of CPC is allowed.

2) The proceedings in M.C.No.842/2021 pending on the file of the III Additional Principal Judge, Family Court, Mysuru is directed to be transferred to the Court of Principal Senior Civil Judge, Hospet, Bellary District for further consideration in accordance with law.

Sd/-

JUDGE NC CT:bms